

Service Area". This recommendation was accepted by the department on 17-10-2007 in order to encourage more competition in the telecom sector and decided to grant new UAS licences.

DOT has been implementing a policy of first-come-first-served for granting UAS licences. The same policy is proposed to be implemented in granting licence to existing applicants. However, it may be noted that grant of UAS licence and allotment of Radio Frequency is a three-stage process.

1. Issue of Letter of Intent (LOI): DOT follows a policy of first-come-first-served for granting LOI to the applicants for UAS licence, which means, an application received first will be processed first and if found eligible will be granted LOI.

2. Issue of Licence: The first-come-first-served policy is also applicable for grant of licence on compliance of LOI conditions. Therefore, any applicant who complies with the conditions of LOI first will be granted UAS licence first. This issue never arose in the past as at one point of time only one application was processed and LOI was granted and enough time was given to him for compliance of conditions of LOI. However, since the Government has adopted a policy of "No Cap" on number of UAS licence, a large number of LOI's are proposed to be issued simultaneously. In these circumstances, an applicant who fulfils the conditions of LOI first will be granted licence first, although several applicants will be issued LOI simultaneously. The same has been concurred by the Solicitor General of India during the discussions.

3. Grant of Wireless Licence: The first-come-first-served policy is also applicable for grant of wireless licence to the UAS licensee. Wireless licence is an independent licence to UAS licence for allotment of radio frequency and authorising launching of GSM/CDMA based mobile services. There is a misconception that UAS licence authorises a person to launch mobile services automatically. UAS licence is a licence for providing both wire and wireless services. Therefore, any UAS licence holder wishing to offer mobile service has to obtain a separate wireless licence from DOT.

Since the file for issue of LOI to all eligible applicants was approved by me on 2-11-2007, it is proposed to implement the decision without further delay and without any departure from existing guidelines.



From Prime Minister January 3, 2008

Dear Shri Raja,

I have received your letter of December 26, 2007 regarding recent development in the telecom sector.

With regards, yours sincerely, Manmohan Singh

uity. Incidentally, the duo were not the only ones to bring in a foreign partner. Tata Teleservices got Japanese telecom major DoCoMo to invest \$2.7 billion for a 26 per cent stake, taking the valuation of the licence to \$10 billion. Indeed, almost every operator has divested equity in favour of foreign companies

and FIIs. Asks Raja "The nation has a right to know how much money promoters of these companies have raked in by offloading their shares to foreign investors. The issue of allotments was raised by the prime minister in letters to Raja (see box) and has been the subject of debate both in the Government and



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